HIPAA Regulations



The Health Insurance Portability and Accountability Act, also known as HIPAA, was enacted in order to protect the personal health information (PHI) of patients. HIPAA requires that the health care provider obtain written permission from the patient before any of their PHI can be shared. Personal health information is "individually identifiable health information transmitted by electronic media; or transmitted or maintained in any other form or medium." PHI can include office visit notes, lab results, treatments, or diagnoses. Patients must provide written consent before any health information of theirs is shared with any other party except for treatment, payment, or health care operations. All health care employees, including phlebotomists, are often required to do continuing education and training on HIPAA and confidentiality practices. Phlebotomists may also be asked to sign a confidentiality and nondisclosure agreement to acknowledge and understand HIPAA and will keep all PHI confidential. There can be significant penalties for HIPAA violations. Knowingly sharing any PHI can result in a fine of up to $1,806,757 and a year in prison. Selling or planning to sell PHI can lead to a fine of up to $1,806,757 and 10 years in prison. It is crucial to be well educated in HIPAA, PHI, and the implications of any violation, even an accidental one.

Discussing PHI With Colleagues

The only people who should be aware of a patient's personal health information are health care workers directly involved in the patient's care. While sometimes tempting, it is a HIPAA violation to discuss any PHI of a patient with someone not on their care team and who does not have the patient's permission. Talking about the patient and their PHI with a colleague on their care team, this must be done in a private area. Discussing PHI in a public area allows someone not caring for the patient to hear the patient's information, which would be considered a HIPAA violation. Avoid discussing patients in elevators, hallways, and eating areas.

Conclusion

The role of a phlebotomist is governed by a set of guidelines prioritizing workplace safety, operational standards, and ethical conduct. Workplace safety protocols protect the phlebotomist and patients from potential harm. Operational standards guarantee that blood specimens are collected, processed, and transported in accordance with best practices, minimizing the risk of errors. HIPAA regulations safeguard patient confidentiality, ensuring that phlebotomists protect personal health information while providing care. The scope of practice for phlebotomists clearly defines their responsibilities, focusing on blood collection and specimen handling. Maintaining ethical standards is crucial, as phlebotomists should always act professionally, respect patient rights, and provide ethical care. These standards work together to create a structure that ensures phlebotomists perform their duties safely, competently, and ethically. This will contribute to positive patient outcomes and a high quality of care.

2.1 CHALLENGE

1. Why is it important that a phlebotomist works within their scope of practice, and what are the potential consequences if they perform tasks outside their scope?

2.1 CHALLENGE KEY

1. The scope of practice is based around tasks that can be performed based on education and training. If a phlebotomist performs a task outside their scope of practice, it can have legal and ethical risks and significantly harm a patient.